Freedom of expression policy

Policy statement

The Vision of Bow Valley College is to open doors and open minds by creating opportunities for learners, employees, employers and communities, and by shaping the future of college education. Its Mission is to include all learners, to challenge our thinking, to remove barriers, to provide opportunity, and to make all learning count.

Consistent with its Vision and Mission, Bow Valley College is committed to an environment of free and open inquiry where diverse ideas, thoughts, opinions and beliefs can be shared and exchanged. In order to promote this learning environment, Bow Valley College believes individuals should have the broadest latitude to speak, write, listen, challenge ideas and learn.

Purpose

The purpose of this Policy is to protect and promote Freedom of Expression in order to facilitate open discussion and free inquiry at Bow Valley College.

Scope

This policy applies to all employees, learners, independent contractors, volunteers, and any other individuals associated with Bow Valley College (e.g. vendors, suppliers and campus visitors

Principal objectives

1. Bow Valley College is committed to protecting and promoting Freedom of Expression in order to facilitate open discussion and free inquiry.
2. Bow Valley College does not attempt to shield members of the College community from ideas or opinions they disagree with or find offensive. Debate or deliberation may not be suppressed because the ideas put forward are thought by some, or even most, to be offensive, unwise, immoral or wrong-headed. Rather, Bow Valley College strives to foster an open learning environment where Members of the College Community may be exposed to diverse thoughts, beliefs and opinions, with a forum to listen, challenge, learn and express their own views.
3. It is not the role of Bow Valley College to make judgments on ideas, opinions or views that are expressed on campus. Rather, it is the role of individualsto make those judgments for themselves and to act not by seeking to suppress expression, but by openly and vigorously contesting the ideas they oppose.
4. Members of the College community are encouraged to question and debate views expressed by others, but they must allow others to express their views without obstruction or interference.
5. Bow Valley College's commitment to protecting and promoting Freedom of Expression does not mean that individuals may say whatever they wish, wherever they wish.
    5.1. Bow Valley College may restrict expression that it reasonably believes violates the law, including public incitement of hatred, willful promotion of hatred, defamation, harassment, a threat or an unreasonable invasion of an individual's privacy.
    5.2. Bow Valley College may restrict expression that is directly incompatible with the functioning of the College.
    5.3. Bow Valley College may reasonably regulate the time, place and manner of expression to ensure that it does not disrupt the ordinary activities of the College or to provide appropriate measures for safety and security.
    5.4. Bow Valley College, notwithstanding an individual's rights and Freedoms of Expression, will only permit an official spokesperson of the College, as identified and delegated by the

President and CEO, to speak on behalf of the college and represent the College's views and perspectives.

6. Bow Valley College is committed to expanding access for adults of varied social, cultural, economic, geographic, and academic backgrounds. Bow Valley College has a special focus on creating educational opportunities for immigrants, Indigenous peoples, international learners, persons with disabilities, older workers, at-risk youth, and the unemployed and underemployed. Given this mandate, respect and civility are especially important to the College's unique culture. This is reflected in Bow Valley College's decision to name "respect" as one if its five core values. Although concerns about respect and civility are not a justification for limiting Freedom of Expression, Bow Valley College strongly encourages civility and respect in dialogue among all members of the College community in order to foster a safe and productive learning environment.

Compliance

Members of the college community are expected to adhere to the policies, procedures, and standards established by the college. These policies are designed to foster a safe, respectful, and inclusive environment that supports learning, teaching, and professional integrity.

Non-compliance may create risk for the college and will be addressed accordingly through applicable college policies, procedures and contracts. This may result in disciplinary action, up to and including termination for employees, and expulsion for students.

Bow Valley College will ensure that complaints regarding Freedom of Expression are appropriately handled in a manner this is consistent with Learner and Employee Code of Conduct Policies and Procedures.

Complaints involving Learners will be directed to Learner Success Services. Complaints involving other members of the college community will be directed to codeofconduct@bowvalleycollege.ca Complaints involving employees will be directed to People & Strategy.

Definitions

Employee:
An individual who is engaged to perform a service at Bow Valley College in accordance with existing terms and conditions of employment, employment contracts or collective agreements.

Freedom of expression:
The right to express thoughts, beliefs and opinions orally, in writing, or by other means.

Independent contractor:
A business, either a sole proprietorships or multi-person company, which provides goods or services to Bow Valley College through a contract.

Learner:
An individual who is currently registered at Bow Valley College to take courses, whether or not for credit. For purposes of this document, "learner" shall be used synonymously for applicants, prospective learners and learners unless specifically noted otherwise.

Volunteer:
A person who offers himself or herself for a service or undertaking to Bow Valley College willingly and without pay.

Data sheet

Accountable officer
Vice-President, Academic

Responsible officer
Vice-President, Academic

Approval
See "Development Framework" for approvers of policy, procedures, and guidelines.

Contact Area
Academic

Relevant dates

Approved	Board of Governors: BOG191031-06
Effective	October 31, 2019
Next review	October 2022
Modification history	• Rebranded 2021
Verified by	Office of the President, April 2025*

Associated policy(ies)
Respectful Workplace Policy (#200-1-11)
Employee Code of Conduct (#200-1-1)
Learner Code of Conduct (#500-1-1)
Ethical Business Practices (#200-1-5)

Directly related procedure(s)
Respectful Workplace Procedures (#200-1-3)
Employee Code of Conduct Procedures (#200-1-1)
Learner Code of Conduct Procedures (#500-1-1)

Directly related guideline(s) (if any)
List any guidelines that support the purpose of this Policy. List in alphabetical order.

Related legislation
Alberta Human Rights Act
Criminal Code of Canada
Post-Secondary Learning Act